significant as the Kesavananda case. It is well known among lawyers, but much less so among the general public.

Indira Gandhi was not pleased with the Supreme Court's attempt in the Kesavananda case to insulate the Constitution from root-and-branch transformation. Over the next few years, her response was threefold: first, to punish the judges who curtailed government power; second, to attempt judicial reversal of the judgement in the Kesavananda case; and third, to attempt legislative reversal. The punishment was forfeiture of the office of chief justice, as Justices Shelat, Hegde and Grover (all of whom held against the government in the Kesavananda case) were overlooked for the position. The judicial reversal was attempted during the Emergency, when another panel of thirteen judges was assembled to reconsider the decision. The reconsideration was 'suddenly and inexplicably abandoned' on the third day into the hearing.[2]

The attempted legislative reversal also took place during the Emergency. The 42nd Amendment to the Constitution, enacted in 1976, was less an amendment and more an effort to radically transform the nature of the Constitution. It added two clauses to Article 368 of the Constitution (the provision governing constitutional amendments) with a view to overturning the Kesavananda judgement and making clear 'beyond doubt'[3] that Parliament had the power to amend *any* part of the Constitution. The first clause stated that no amendment of the Constitution, regardless of when it was enacted, would be 'called in question in any court on any ground'.[4] The second clause clarified that there would be 'no limitation whatever'[5] on Parliament's power to amend the Constitution.

Once Indira Gandhi called (and famously lost) the elections of 1977, the Janata government engaged in an effort to undo the damage to the Constitution. It succeeded in some respects but failed in others. The changes proposed included amendments to Article 368 that would identify the following as forming part of the basic structure of the Constitution: independence of the judiciary, free and fair elections, and all fundamental rights within the Constitution. Under the proposed amendment, changes to this basic structure could only be undertaken upon approval in a